



CHAPTER xiv

An Act to make further provision as to the chairmen and deputy chairmen of courts of quarter sessions holden for the county palatine of Lancaster; and for other purposes.
[9th May, 1961.]

WHEREAS—

(1) The general quarter sessions of the peace in and for the county palatine of Lancaster have for many years past been held at Lancaster within the hundred of Lonsdale, and by adjournment at Preston within the hundreds of Amounderness, Blackburn and Leyland, at Manchester or elsewhere within the hundred of Salford and at Liverpool within the hundred of West Derby:

(2) By the Lancashire Quarter Sessions Act, 1928, the justices in quarter sessions were empowered to appoint deputy chairmen to act as chairman of quarter sessions in the absence of the salaried chairman thereof or to act as chairman of a second court; and provision was made as to the daily fee to be paid to any person so appointed:

(3) The duties of chairmen of quarter sessions held in the county palatine of Lancaster have substantially increased and it is necessary to hold two or more courts:

(4) It is expedient that the justices of the peace acting within the hundreds of Amounderness, Blackburn and Leyland and the justices of the peace acting within the hundred of Salford should be authorised to appoint salaried deputy chairmen to act as chairman of general quarter sessions of the peace holden by adjournment at Preston and at Manchester in the absence of the salaried chairman thereof or to act as chairman of an additional court:

(5) It is expedient that the justices of the peace acting within the hundred of Lonsdale and the justices of the peace acting within the hundred of West Derby should be authorised to appoint salaried deputy chairmen to act as chairman of the respective quarter sessions of the peace holden within such hundreds in the absence of the salaried chairman thereof or to act as chairman of an additional court:

(6) It is expedient to make provision whereby one and the same person may be appointed and act as salaried deputy chairman of general quarter sessions of the peace to be holden for the said county in any two or more of the said hundreds respectively:

(7) It is expedient to make provision as to the salaries and allowances to be paid to any such salaried deputy chairman or salaried deputy chairmen, as to the fees to be paid to any deputy chairman or deputy chairmen appointed under the said Act of 1928, as to pensions for salaried deputy chairmen of general quarter sessions of the peace to be holden for the said county, and as to the rates funds and moneys out of which the same shall be payable:

(8) It is expedient to make provision as to the qualification of chairmen and deputy chairmen of general quarter sessions of the peace to be holden for the said county:

(9) It is expedient that the other provisions contained in this Act be enacted:

(10) The purposes of this Act cannot be effected without the authority of Parliament:

(11) In relation to the promotion of the Bill for this Act, the requirements of Part XIII of the Local Government Act, 1933, have been observed:

May it therefore please Your Majesty that it may be enacted, and be it enacted, by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal,

and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1.—(1) This Act may be cited as the Lancashire Quarter Sessions Act, 1961.

Short and
collective
titles.

(2) The Lancashire Quarter Sessions Act, 1928, Part VI of the Cheshire and Lancashire County Councils (Runcorn-Widnes Bridge etc.) Act, 1947 and this Act may be cited together as the Lancashire Quarter Sessions Acts, 1928 to 1961.

2.—(1) In this Act, unless the subject or context otherwise requires, the following expressions have the meanings hereby respectively assigned to them:—

Interpretation.

“ Act of 1928 ” means the Lancashire Quarter Sessions Act, 1928;

“ the clerk of the peace ” includes the deputy clerk of the peace or other person discharging the duties of clerk of the peace of the county;

“ Council ” means the county council of the administrative county of the county palatine of Lancaster;

“ county ” means the county palatine of Lancaster;

“ the Lancaster justices ” means the justices of the peace for the county acting within the hundred of Lonsdale and present at a general quarter sessions of the peace holden for the county at Lancaster or elsewhere within the said hundred;

“ Lancaster Quarter Sessions ” means the general quarter sessions of the peace holden for the county at Lancaster or elsewhere within the hundred of Lonsdale;

“ the Liverpool justices ” means the justices of the peace for the county acting within the hundred of West Derby and present at a general quarter sessions of the peace holden by adjournment for the county at Liverpool or elsewhere within the said hundred;

“ Liverpool Quarter Sessions ” means the general quarter sessions of the peace holden by adjournment for the county at Liverpool or elsewhere within the hundred of West Derby;

“ the Manchester justices ” means the justices of the peace for the county acting within the hundred of Salford and present at a general quarter sessions of the peace holden by adjournment for the county at Manchester or elsewhere within the said hundred;

“ Manchester Quarter Sessions ” means the general quarter sessions of the peace holden by adjournment for the county at Manchester or elsewhere within the hundred of Salford;

“ the Preston justices ” means the justices of the peace for the county acting within the hundreds of Amounderness, Blackburn and Leyland and present at a general quarter sessions of the peace holden by adjournment for the county at Preston or elsewhere within the said hundreds;

“ Preston Quarter Sessions ” means the general quarter sessions of the peace holden by adjournment for the county at Preston or elsewhere within the hundreds of Amounderness, Blackburn and Leyland.

(2) Unless otherwise expressly stated, any reference in this Act to any enactment shall be construed as a reference to that enactment as applied, extended, amended or varied by, or by virtue of, any subsequent enactment including this Act.

Appointment
of salaried
deputy
chairmen
of quarter
sessions.

3.—(1) Subject to the provisions of this Act—

- (a) the Preston justices and the Manchester justices may from time to time appoint any person or persons to be salaried deputy chairman or salaried deputy chairmen of the Preston Quarter Sessions and the Manchester Quarter Sessions;
- (b) the Lancaster justices may from time to time appoint any person or persons to be salaried deputy chairman or salaried deputy chairmen of the Lancaster Quarter Sessions;
- (c) the Liverpool justices may from time to time appoint any person or persons to be salaried deputy chairman or salaried deputy chairmen of the Liverpool Quarter Sessions.

(2) A person appointed as salaried deputy chairman under the last foregoing subsection shall hold office only so long as he remains in the commission of the peace for the county, and the justices by whom such person was appointed may remove him from office.

(3) It shall be the duty of any person appointed as salaried deputy chairman as aforesaid while holding office to officiate with the approval of the justices in quarter sessions as chairman of the quarter sessions of which he was appointed a deputy chairman in the absence of the salaried chairman thereof by reason of sickness or otherwise and, with such approval as aforesaid, to act as chairman of an additional court on any occasion when an additional court is held.

4. The persons who shall be eligible for appointment as salaried deputy chairmen of quarter sessions shall be persons who are justices of the peace for the county and barristers-at-law or solicitors of not less than ten years' standing. Qualification of salaried deputy chairmen.

5.—(1) There shall be paid to each person appointed deputy chairman of quarter sessions under the provisions of section 3 (Appointment of salaried deputy chairmen of quarter sessions) of this Act, so long as he continues to officiate as such deputy chairman, such salary as may be approved by the Lord Chancellor. As to salaries and expenses of deputy chairmen of quarter sessions.

(2) The justices of the quarter sessions by whom a deputy chairman is appointed may make to such deputy chairman an allowance in respect of expenses incurred, or to be incurred, by him by virtue of his appointment.

(3) The provisions of section 14 (As to payment of salaries pensions and fees) of the Act of 1928 shall apply to the payment of salaries and allowances under this section.

6. The under-mentioned sections of the Act of 1928 shall so far as applicable extend and apply in relation to salaried deputy chairmen appointed under the provisions of section 3 (Appointment of salaried deputy chairmen of quarter sessions) of this Act as if those sections with any necessary modifications (including the substitution of "deputy chairman" for "chairman") were re-enacted in this Act:— Application of provisions of Act of 1928.

Section 7 (Compulsory retirement of salaried chairman);

Section 10 (As to combined chairmanships);

Section 12 (As to pension to salaried chairmen);

Section 13 (As to joint exercise of powers by justices).

7.—(1) Section 6 (Qualification of salaried chairmen) of the Act of 1928 shall have effect as if after the words "barristers-at-law" there were inserted the words "or solicitors". Amendment of provisions of Act of 1928.

(2) Section 9 (As to deputy chairmen) of the Act of 1928 shall have effect as if—

(a) after the words "a barrister-at-law" there were inserted the words "or solicitor";

(b) after the words "in the absence of the salaried chairman" there were inserted the words "and salaried deputy chairmen";

(c) for the words "or to act as chairman of a second court on any occasion when such second court is held" there were substituted the words "or to act as chairman of an

additional court on any occasion when an additional court is held and in the absence of the salaried deputy chairmen by reason of sickness or otherwise"; and

- (d) for the words "the said justices may from time to time determine not exceeding ten guineas" there were substituted the words "may be approved by the Lord Chancellor".

Amendment
of section 2 of
Administration
of Justice
(Miscellaneous
Provisions)
Act, 1938.

8. Paragraph (d) of subsection (2) of section 2 of the Administration of Justice (Miscellaneous Provisions) Act, 1938, shall have effect as if for the words "Lancashire Quarter Sessions Act, 1928" there were substituted the words "Lancashire Quarter Sessions Acts, 1928 to 1961".

Costs of Act.

9. All costs, charges and expenses preliminary to and of and incidental to the preparing, applying for, obtaining and passing of this Act or otherwise in relation thereto as taxed by the taxing officer of the House of Lords, or of the House of Commons, shall be paid by the Council out of the county fund of the Council.

Table of Statutes referred to in this Act

Short title	Session and chapter
Lancashire Quarter Sessions Act, 1928 ...	18 & 19 Geo. 5 c. xxx.
Local Government Act, 1933 ...	23 & 24 Geo. 5 c. 51.
Administration of Justice (Miscellaneous Provisions) Act, 1938	1 & 2 Geo. 6 c. 63.
Cheshire and Lancashire County Councils (Runcorn-Widnes Bridge, etc.) Act, 1947	10 & 11 Geo. 6 c. xxix.

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